AUSTRALIAN COMPETITION & CONSUMER COMMISSION

Fruitico – Lease and option to purchase Terra Farm and Sunsweet Farm

MN-15053

Phase 1 Determination

Acquisition may be put into effect

12 November 2026

1. Determination and statement of reasons

Notified acquisition	Fruitico Pty Ltd (**Fruitico**), through a wholly owned subsidiary, proposes to acquire a two-year lease and option to purchase Terra Farm and Sunsweet Farm from the Bumbak Group (as defined below) (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Fruitico, is a subsidiary of Fresh Produce Group Holdings Pty Limited (**Fresh Produce Group**). Fresh Produce Group is a national produce supplier, primarily active across table grapes, berries and citrus. Fresh Produce Group's business comprises growing, importing, exporting, wholesale, pre-packing, ripening, logistics and marketing of produce. Fresh Produce Group is a wholly owned subsidiary of Beauty Bay Produce Pty Ltd, which is 51.42% owned by Cherry Agriculture Holding Pty Limited as trustee for the Cherry Holding Trust. Funds advised and/or managed by Macquarie Asset Management have an interest in Cherry Holding Trust. The subject of the Acquisition is a lease and option to purchase: 1. Terra Farm, a 32-hectare farm involved in the growing, packing and distribution of table grapes and mangoes. Terra Farm's assets include C Class Gascoyne Water shares tied to the land title, associated equipment and one residential dwelling. 2. Sunsweet Farm, a 35-hectare farm involved in the growing, packing and distribution of table grapes and mangoes. Sunsweet Farm's assets include C Class Gascoyne Water shares tied to the land title. Terra Farm and Sunsweet Farm are currently owned and operated by Davmark Pty Ltd as trustee for the Davmark Discretionary Trust, Sunsweet Investments Pty Ltd as trustee for the Sunsweet Unit Trust, David Bumbak as trustee for the David Bumbak Family Trust, Mark Bumbak as trustee for the Mark Bumbak Family Trust and Helen Bumbak as trustee for the Helen Bumbak Trust (**Bumbak Group**).
Relevant areas of competition	Fruitico, Terra Farm and Sunsweet Farm overlap in the growing and supply of table grapes in WA. Fruitico, Terra Farm and Sunsweet Farm (through the Bumbak Group) have an existing relationship where Terra Farm and Sunsweet Farm supply Fruitico with table grapes.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (**ACCC**) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the *Competition and Consumer Act 2010* (Cth) (the **Act**). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers.

	For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, publicly available information and information provided by third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following finding. • The Acquisition does not materially increase aggregation in the supply of table grapes in the relevant region, taking into account the volume of grapes supplied by the target and the existing supply arrangements between the Bumbak Group and Fruitico. • Post acquisition, there would continue to remain multiple alternative suppliers of table grapes available to customers.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Woodward pursuant to a delegation under section 25(1) of the Act